

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI
LAFAYETTE COUNTY
FILED

SUMMIT MANAGEMENT SERVICES, LLC PLAINTIFF

v. JUN 29 2017 CAUSE NO. L17-097

MATTHEW REARDON DEFENDANT

Baretta Mosley
CIRCUIT CLERK
BY:  D.C.

MOTION FOR DEFAULT JUDGMENT

COMES NOW, Summit Management Services, LLC, pursuant to Miss. R. Civ. P. 55, to submit this Motion for Default Judgment. In support thereof, the Plaintiff would show:

1. Plaintiff Summit Management Services, LLC filed its Complaint on March 9, 2017. A copy of the Complaint is attached hereto as Exhibit 1.
2. The Complaint was personally served upon Matthew Reardon on May 16, 2017, pursuant to Rule 4 of the Mississippi Rules of Civil Procedure. A copy of the executed proof of service was filed with the Clerk on June 16, 2017.
3. The Defendant failed to appear, plead, or otherwise defend his interest in the lawsuit within the time allowed for a response.
4. The Plaintiff requested an Entry of Default on June 16, 2017. In support of its request, counsel for the Plaintiff submitted an affidavit in support of Plaintiff's request for an entry of default testifying to the facts concerning service of process as stated above. The affidavit further stated that to the best of Affiant's knowledge and belief the Defendant is not an infant or incompetent person, or in the military service purview of the Servicemembers Civil Relief Act, 50 U.S.C. App § 521.
5. The Clerk has entered default against the Defendant.
6. Accordingly, pursuant to Rule 55(b), the Plaintiff hereby moves this Court for Default Judgment against the Defendant.

7. The Plaintiff respectfully states that the Complaint and exhibits thereto (collectively attached hereto as Exhibit 1) demonstrate that the Plaintiff is entitled to a judgment against the Defendant in the principal amount of \$2,400.00 plus repair costs of \$450.00 as shown on the attached invoices.
8. Additionally the Court should award reasonable attorney fees of \$2,425.00 when taking into consideration the time and labor required, the novelty and difficulty of the questions involved, and the skill requisite to perform the legal service properly; the likelihood that the acceptance of this particular employment would preclude other employment; the fees customarily charged in this locality for similar legal services; the amount involved and the results obtained; the time limitations imposed by the client and/or by the circumstances; the nature and length of counsel's professional relationship with the client; and counsel's experience, reputation, and ability.
9. The Court should also award soft costs (postage, copies) in the amount of \$5.25.
10. Additionally the Court should award pre-judgment interest in the amount of \$58.87 calculated at the rate of eight percent (8%) per annum, as provided by contract and required by MISS. CODE ANN. § 75-17-7, and post-judgment interest at the same rate.
11. Additionally the Court should award the Plaintiff's its court costs in the amount of \$157.50 together with service of process costs of \$155.00.
12. The total amount of the judgment, including principal, pre-judgment interest, attorneys fees, and costs equals \$5,651.62.

WHEREFORE, PREMISES CONSIDERED, Plaintiff demands judgment of and from the Defendant in the total amount of \$5,651.62. The Plaintiff further demands post-judgment interest at eight percent (8%) per annum and continuing attorney fees as provided by contract on the entire award until the same is paid in full, and any and all other relief to which it may be entitled.

SUMMIT MANAGEMENT SERVICES, LLC

BY: FREELAND MARTZ, PLLC

A handwritten signature in cursive script, appearing to read "Reed Martz", is written over a horizontal line.

M. REED MARTZ, MS BAR 101443

FREELAND MARTZ, PLLC
302 Enterprise Drive, Ste. A
PO Box 2249
Oxford, MS 38655
662.234.1711
662.234.1739 fax
reed@freelandmartz.com

CERTIFICATE OF SERVICE

I do hereby certify that I have this day mailed, postage pre-paid, or sent via electronic mail,
a true and correct copy of the forgoing to:

Matthew Reardon
15 CR 170
Oxford, MS 38655

THIS the 29th day of June 2017.

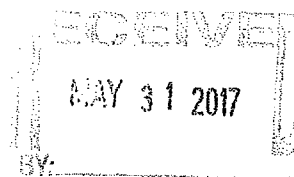


M. REED. MARTZ, MSB # 101443

INVOICE

Date: May 19, 2017
Invoice # 108

CM Cleaning
PO Box 732
Oxford, MS 38655
662-202-7660
Miller8709@gmail.com

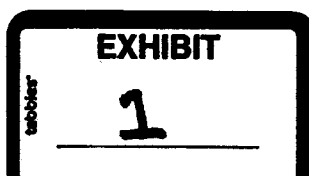


SALESPERSON	JOB	PAYMENT TERMS	DUE DATE
	15 CR 170	Due on receipt	

QTY	DESCRIPTION	UNIT PRICE	LINE TOTAL
1	4bd 2ba Turnover Cleaning	225.00	225.00
0	Trash removal (picnic table, propane tank, dishes, misc. garage items)	15.00	15.00
1	Lawn Care	75.00	75.00

SUBTOTAL	315.00
SALES TAX	0.00
TOTAL	315.00

Make all checks payable to Chuckie Miller
Thank you for your business!



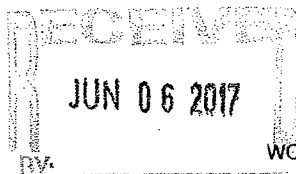
GAMMEL ENT. LLC
PO BOX 2727
OXFORD, MS 38655
662-539-1212

GAMMELENT@GMAIL.COM

BILL TO
SUMMITT MANAGEMENT
OXFORD, MS, 38655

Invoice

Number 3810
Date 5/17/2017



WORK PERFORMED AT

PO Number
689

SERVICE REP

PROJECT
15 CR 170

Description	HRS QTY	PRICE RAT	Amount
REPLACE DOOR..MORTISE HINGES IN DOOR..REPLACE HDWE AND LOCK	1.00	\$135.00	\$135.00

X

	Discount	\$0.00
	Shipping Cost	\$0.00
	Sub Total	\$135.00
	Sales Tax 7.00% on \$0.00	\$0.00
Amount Paid	\$0.00	
Amount Due	\$135.00	
	TOTAL	\$135.00

INVOICE NUMBER MUST BE ON CHECK FOR PROPER POSTING

Summit Management Services, LLC
PO Box 2715
Oxford, MS 38655
Phone - (662) 513-9990
Fax - (662) 513-0114

To:
Gamme Ent.
PO Box 2727
Oxford, MS 38655
Mobile - (662) 539-1212

Work Order #	689-1
Status	New
Created On	04/24/2017
Estimate Requested On	--
Estimated On	--
Scheduled On	--
Completed On	--
Job Site	Outside Oxford 15 15 CR 170 - 15 Oxford, MS 38655
Pet(s)	--
Maintenance Limit	

Tenant(s)

No Current Tenant

Description

replace guest bedroom door - hole is on the back side

Vendor Instructions

replace guest bedroom door - hole is on the back side

Property Notes

~~all work orders go to owner.~~

30" door

Created By: Lisa Griffis
Authorized By: _____
Signed By: *[Signature]*
Dated By: 5-17-17
Invoice #: 3810

Technician's Notes: